IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 202
CA(CAA)-78/ND/2022

IN THE MATTER OF:
Aayushi Credit and Capital Services Ltd. & Ors. with KBN Infrastructure Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 19.05.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. L. N. GUPTA
HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Adv. Ranjana Roy Gowai, Adv. Vasudha Sen, Adv. Vineet Wadhwa for Transferee Company, Adv. Arun Saxena, Adv. Sanu Pastore

ORDER

Ld. Counsels for the Applicants presented their prayer. The Bench had asked for a report from RD, which is on record. The Bench perused the Report. In the report of RD, it has been specifically reflected thus:

> *"8. That the No objection from O/o Serious Fraud Investigation Office need to be obtained w.r.t. scheme in addition to Regulatory reports from the concerned Authorities as SFIO has investigated the transferor and transferee companies since it involves elements of public interest. On merger, the transferor companies shall cease to exist, therefore, the prosecutions cannot continue against the Transferor Companies consequent upon deletion of their names. Thus, this averment in the petition of merger that proceeding shall continue against transferee company would not be totally correct. On being asked to furnish copy of details of prosecution filed by the Serious Fraud Investigation Office against the transferor and transferee companies, the same were not provided. This Report is filed in terms of Hon'ble Tribunal order dated 15.11.2022 prejudice to the rights of Regional Director to file further report in terms of Section 230 (5) on receipt of input from Registrar of Companies."*

In the wake, let the notice along with a copy of the petition and RD's Report be issued to the Serious Fraud Investigation Office (SFIO) through its Director

with a direction that the said office would furnish comment/report qua the report of RD. The Ld. Counsels for the Applicant undertakes to serve notice upon SFIO along with a report of RD within 3 days and would file an affidavit of service within 4 days thereafter.

It is made clear that SFIO should file/upload its report on DMS within 2 weeks from the date of service of notice and in the event of there being no submission of report/comments by SFIO within the given time, it will be presumed that the said office had nothing to say regarding pendency of investigation, qua the Applicant companies.

List on 21.07.2023.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

UPASANA